

24SMCV02801 24SMCV02801

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-06

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The matter is here for an FSC. The trial date was set at a CMC held on December 6, 2024. The parties seek to continue the trial. Counsel states that when the court continued the trial from July 13 to July 14, that had a material impact on counsel's ability to try the case due to pre-planned travel. The court is not sure that it can agree that the one day continuance is material in that way. The court does note, though, that there is a possibility that the court will be otherwise engaged next week in another matter that has statutory priority. If that is the case, then the court will discuss moving this case. The court will also need to discuss how long this trial is expected to go.

The court has received the following FSC materials: (1) Joint Witness List. 20 witnesses and 42 hours of testimony. (2) Joint Exhibit List. 117 exhibits for plaintiff and 31 for the defense. No indications of whether the parties will stipulate as to authenticity or admissibility.

The court has not received trial briefs or any deposition designations. The latter is not necessary if the parties do not intend to use depositions other than for impeachment. The former would have been helpful. More to the point, though, the court needs to know whether there will be stipulations as to authenticity or admissibility. That is better done before trial.

As to the application to advance the motion for a view, the

application is GRANTED. The application
is advanced to today and DENIED WITHOUT PREJUDICE. Given that this is a bench trial, the court
need not rule on it today. But
plaintiffs may renew the motion during trial when the court will have a better
idea whether a view is necessary.